

24STCV19894 24STCV19894

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-07-31

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Case Number: 24STCV19894 Hearing Date: July 31, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

31, 2026 TRIAL DATE: August 11, 2026

CASE: Melissa Langaas v.ζMonstera Group Inc., et al.

CASE NO.: 24STCV19894

PROPOSED

JURY INSTRUCTIONS

I. BACKGROUND

This is an employment discrimination case. On July 23, 2026, Plaintiff filed the parties' Full Text Jury Instructions Joint and Contested. The court now rules on the disputed proposed jury instructions.

II. DISCUSSION

A. Plaintiff's Proposed Instructions

1.

CACI No. 2500. Disparate Treatment-Essential Factual Elements (Gov.

Code, §

12940(a)): GRANTED.

2.

SJI No. 1: GRANTED.

3.

CACI No. 2509. Adverse Employment Action Explained (Modified): GRANTED

IN PART. The court proposes the

inclusion of the following language at the beginning of the instruction:

“Melissa Langas must prove that she was subjected to an adverse employment action.”

4.

CACI No. 2505. Retaliation-Essential Factual Elements (Gov. Code, §

12940(h)): GRANTED IN PART. Plaintiff must replace the language “adverse employment action” in elements 2, 3, and 5 with the actual description of the adverse employment action.

5.

CACI No. 2507. “Substantial Motivating Reason” Explained: GRANTED IN PART. Plaintiff must replace the language “adverse

employment action” with the actual description of the adverse employment action.

6.

CACI No. 2513. Business Judgment: GRANTED IN PART. Plaintiff must replace the language “adverse employment action” with the actual description of the adverse employment action.

7.

CACI No. 2525. Harassment—“Supervisor” Defined (Gov. Code, § 12926(t)): GRANTED.

8.

SJI No. 2: DENIED.

9.

CACI No. 2540. Disability Discrimination-Disparate Treatment-Essential Factual

Elements: GRANTED

IN PART. Regarding element 3, the court

also proposes the removal of the language "...perception of her physical

condition" and the removal of "take adverse employment action" with a

description of the alleged adverse employment action. The court also proposes the removal of the

parenthetical in the instruction.

10.

SJI No. 3: GRANTED.

11.

SJI No. 4: DENIED.

12.

SJI No. 5: DENIED.

B. Defendants'

Proposed Instructions

1.

SJI No. 1: DENIED.

2.

SJI No. 2: GRANTED.

3.

SJI No. 3: GRANTED IN

PART. The court proposes the removal of

the following language: "Use of vulgarity is not sufficient to support a sexual

harassment claim."

4.

SJI No. 4: GRANTED.

Dated: July 31, 2026

Brock T. Hammond

Judge of the

Superior Court